

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1188
(Representative Lefor)

AN ACT to amend and reenact section 15-20.2-08 of the North Dakota Century Code, relating to the assessment of fees for area career and technology center expenses.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 15-20.2-08 of the North Dakota Century Code is amended and reenacted as follows:

15-20.2-08. Assessment of participating districts for proportionate share of center expenses - Allocation of students - Civil penalty for failure to remit payment.

1. A center board ~~shall~~, for the purpose of paying any administrative, planning, operating, or capital expenses incurred or to be incurred, shall assess each participating:
 - a. ~~Participating~~ school district its ~~proportionate share~~ a center membership fee based upon its high school enrollment as compared to the total high school enrollment of all participating school districts in the area career and technology center and ~~shall assess each nonparticipating~~ may assess fees based on access and use of programs.
 - b. ~~Nonparticipating~~ school district receiving services its ~~proportionate share~~ a fee based upon its ~~utilization~~ use of programs.
2. A center board ~~shall, as nearly as possible, allocate, as nearly as possible,~~ the number of students from each participating district to be served in an area career and technology center on the same proportionate basis as is used for the assessment of expenses.

~~A center board utilizing mobile units solely shall, for the purpose of paying any administrative, planning, operating, or capital expenses incurred or to be incurred, assess each participating school district its proportionate share based upon its utilization of programs as compared to total program utilization of all participating school districts in such center. A center board utilizing mobile units solely shall, as nearly as possible, determine the program utilization of each participating school district to be served based upon its high school enrollment as compared to the total high school enrollment of all participating school districts in such center and the school's accessibility to those programs.~~

3. Each participating school district shall remit payment of the assessment of its share of expenses to the center board promptly after receipt of the assessment notice, or within a period of time determined by the center board, but no later than sixty days after the official date of receipt as noted on the assessment notice. A civil penalty of one percent per month must accrue on all assessments not paid when due.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1188.

House Vote: Yeas 88 Nays 0 Absent 6

Senate Vote: Yeas 45 Nays 0 Absent 2

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State